

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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JOHN TOLIAFERRO,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
FRANKLIN CERDA, Shield No. 5174, DETECTIVE
VOLNEY JEANJACQUES, Shield No. 2282, SERGEANT
VALERIE VISCO, Tax # 919098, SERGEANT ROBERT
TAYLOR, SERGEANT WILLIAM RENTAS,
SERGEANT FELIZ, SERGEANT RON SAWERS,
POLICE OFFICER CUMMINGS, and POLICE
OFFICERS JOHN DOES #1-10 (names and number of
whom are unknown at present), and other unidentified
members of the New York City Police Department,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates New York
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 16, 2014

Yours, etc.



JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
POLICE OFFICER FRANKLIN CERDA, Shield No. 5174, PSA 6
DETECTIVE VOLNEY JEANJACQUES, Shield No. 2282, PSA 6
SERGEANT VALERIE VISCO, Tax # 919098, PSA 6
SERGEANT ROBERT TAYLOR, PSA 6
SERGEANT WILLIAM RENTAS, PSA 6
SERGEANT FELIZ, PSA 6
SERGEANT RON SAWERS, PSA 6
POLICE OFFICER CUMMINGS, PSA 6

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
JOHN TOLIAFERRO,

Plaintiff,

-against-

INDEX NO.:

VERIFIED COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER
FRANKLIN CERDA, Shield No. 5174, DETECTIVE
VOLNEY JEANJACQUES, Shield No. 2282, SERGEANT
VALERIE VISCO, Tax # 919098, SERGEANT ROBERT
TAYLOR, SERGEANT WILLIAM RENTAS,
SERGEANT FELIZ, SERGEANT RON SAWERS,
POLICE OFFICER CUMMINGS and POLICE OFFICERS
JOHN DOES #1-10 (names and number of whom are
unknown at present), and other unidentified members of the
New York City Police Department,

JURY TRIAL DEMANDED

Defendants.
----- X

Plaintiff, JOHN TOLIAFERRO, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and secured by the common law of the state of New York, the New York State Constitution, and the laws of the State of New York. The defendants violated these rights by falsely arresting plaintiff and maliciously prosecuting him on two separate dates. On January 7, 2013, at approximately 10:00 p.m., plaintiff, John Toliaferro, while lawfully inside of his apartment, located at 2949 8th Avenue, Apt. 13E, New York, New York, was subject to an unlawful seizure, search, detention, false arrest, and false imprisonment, by the defendant New York City police officers. Thereafter, the defendants committed the tort and constitutional violation of malicious abuse of process against plaintiff and also maliciously prosecuted plaintiff by initiating a criminal prosecution against plaintiff without probable cause, and knowingly using false allegations against plaintiff to support the charges. All criminal charges related to the January 7, 2013 arrest of plaintiff terminated in his favor when all charges against him were dismissed on May 20, 2013. Thereafter, on March 3, 2013, at approximately 12:00 a.m.,

plaintiff, John Toliaferro, while lawfully inside of his apartment, located at 2949 8th Avenue, Apt. 13E, New York, New York, was subject to an unlawful seizure, search, detention, false arrest, and false imprisonment, by the defendant New York City police officers. Thereafter, the defendants committed the tort and constitutional violation of malicious abuse of process against plaintiff and also maliciously prosecuted plaintiff by initiating a criminal prosecution against plaintiff without probable cause, and knowingly using false allegations against plaintiff to support the charges. All criminal charges related to the March 3, 2013 arrest of plaintiff terminated in his favor when all charges against him were dismissed on July 18, 2013. Importantly, the defendant police officers knew Asia Booker, a homeless drug addicted prostitute prior to responding to either of the incidents pled in the Complaint. Asia Booker was the perpetrator of crimes against plaintiff during both incidents, and the defendant police officers fabricated allegations against plaintiff in order to curry favor with Asia Booker. According to Asia Booker, and upon information and belief, several of the defendant police officers in this matter were on the payroll of drug dealer in Harlem. Asia Booker is admittedly to crack cocaine, is homeless, and is a prostitute. According to Asia Booker, she has repeatedly sexually entertained NYPD police officers assigned to PSA 6 at Harlem Hotels in exchange for crack cocaine. Furthermore, according to Asia Booker, she has had one on one sexual encounters with several of the defendants named herein, both prior to and after the incidents alleged herein. According to Asia Booker, and upon information and belief, she reported these allegations against the PSA 6 officers to the Internal Affairs Bureau of the NYPD and the officers are presently being investigated for engaging in this corrupt and criminal practice. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully seized, searched, detained, falsely arrested, falsely imprisoned, maliciously prosecuted, and subjected plaintiff to an abuse of process in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution and the common law of the state of New York.

PARTIES

2. Plaintiff John Toliaferro is a resident of the State of New York.
3. POLICE OFFICER FRANKLIN CERDA, Shield No. 5174, is and was at all time relevant herein an officer, employee, and agent of the New York City Police Department.
4. POLICE OFFICER FRANKLIN CERDA, Shield No. 5174, is and was at all relevant times herein assigned to the PSA 6 NYPD command.
5. POLICE OFFICER FRANKLIN CERDA, Shield No. 5174, is being sued in his individual and official capacity.
6. DETECTIVE VOLNEY JEANJACQUES, Shield No. 2282, is and was at all time relevant herein an officer, employee, and agent of the New York City Police Department.
7. DETECTIVE VOLNEY JEANJACQUES, Shield No. 2282, is and was at all relevant times herein assigned to the PSA 6 NYPD command.

8. DETECTIVE VOLNEY JEANJACQUES, Shield No. 2282, is being sued in his individual and official capacity.

9. SERGEANT VALERIE VISCO, Tax # 919098, is and was at all time relevant herein an officer, employee, and agent of the New York City Police Department.

10. SERGEANT VALERIE VISCO, Tax # 919098, is and was at all relevant times herein assigned to the PSA 6 NYPD command.

11. SERGEANT VALERIE VISCO, Tax # 919098, is being sued in his individual and official capacity.

12. SERGEANT ROBERT TAYLOR, is and was at all time relevant herein an officer, employee, and agent of the New York City Police Department.

13. SERGEANT ROBERT TAYLOR, is and was at all relevant times herein assigned to the PSA 6 NYPD command.

14. SERGEANT ROBERT TAYLOR, is being sued in his individual and official capacity.

15. SERGEANT WILLIAM RENTAS, is and was at all time relevant herein an officer, employee, and agent of the New York City Police Department.

16. SERGEANT WILLIAM RENTAS, is and was at all relevant times herein assigned to the PSA 6 NYPD command.

17. SERGEANT WILLIAM RENTAS is being sued in his individual and official capacity.

18. SERGEANT FELIZ, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. SERGEANT FELIZ, is and was at all relevant times herein assigned to the PSA 6 NYPD command.

20. SERGEANT FELIZ, is being sued in his individual and official capacity.

21. SERGEANT RON SAWERS, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

22. SERGEANT RON SAWERS, is and was at all relevant times herein assigned to the PSA 6 NYPD command.

23. SERGEANT RON SAWERS, is being sued in his individual and official capacity.

24. POLICE OFFICER CUMMINGS, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

25. POLICE OFFICER CUMMINGS, is and was at all relevant times herein assigned to the PSA 6 NYPD command.

26. POLICE OFFICER CUMMINGS, is being sued in his individual and official capacity.

27. Defendant New York City Police Officers JOHN DOES #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

28. Defendant Police Officers JOHN DOES #1-10 are being sued in their individual and official capacities.

29. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

30. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

31. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

32. Plaintiff in furtherance of some or all of his State causes of action filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with General Municipal Law Section 50.

33. The CITY OF NEW YORK held a hearing pursuant to 50-h of the general municipal law on or about July 15, 2014.

34. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

35. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

36. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

37. On January 7, 2013, at approximately 10:00 a.m, plaintiff lawfully entered his apartment building and took the elevator to his floor located at 2949 8th Avenue, New York, New York.

38. Upon exiting the elevator, plaintiff encountered a homeless, drug addicted prostitute named Asia Booker in the hallway outside of his apartment.

39. Asia Booker did not reside in plaintiff's apartment building, and upon information and belief, she did not have permission to enter the building and she was trespassing in the building.

40. Plaintiff observed Ms. Booker sitting directly in front of the door to his apartment, blocking plaintiff from entering his apartment.

41. Further, plaintiff observed Ms. Booker openly and publically smoking crack cocaine and marijuana, as she lay in the entrance way to his home.

42. Plaintiff attempted to maneuver around Ms. Booker and enter his apartment, and also politely asked Ms. Booker not to use drugs in front of his apartment in the future.

43. As plaintiff lawfully was in the act of opening the door to his apartment, Ms. Booker punched and kicked plaintiff, causing a significant laceration to plaintiff's eye when her crack pipe smashed against plaintiff's face causing plaintiff to bleed.

44. Plaintiff attempted to enter his apartment and shut his door in order to end Ms. Booker's assault on him.

45. Eventually, plaintiff succeeded closed the front door to his apartment, and ended the attack by Ms. Booker.

46. Plaintiff called 911 to report the incident, and to alert the police that Ms. Booker was unlawfully present in the building and that she had just attacked him.

47. Notably, plaintiff warned Ms. Booker that he was calling the police to report the crime she committed.

48. Notably, at no time did Ms. Booker call 911.

49. Instead, upon learning that the incident was reported to the police, Ms. Booker fled the building instead of confronting the police and providing her version of events.

50. Thereafter, the individually named defendant police officers responded to plaintiff's apartment and plaintiff reported Ms. Booker's crimes against him and told the defendant police officers that Ms. Booker was no longer in the building.

51. Upon and information and belief, the individually named defendant police officers observed the physical injuries to plaintiff's person and acknowledged to plaintiff that they could see the laceration on his face which was bleeding significantly. Moreover, the officers acknowledged to plaintiff that his physical injuries were wholly consistent with his version of events about how Ms. Booker assaulted him and caused his injuries.

52. Thereafter, the individually named defendants canvassed the apartment building looking for Ms. Booker.

53. The individually named defendant police officers found Ms. Booker outside of plaintiff's apartment building and placed Ms. Booker under arrest for assaulting plaintiff.

54. It was clear to any reasonable person that she was not physically injured, and had not recently been assaulted. Notably, Ms. Booker was not bleeding, and did not have any visible bruises. Ms. Booker never received any medical treatment for any physical injuries.

55. The defendant police officers verbally stated to plaintiff that they were familiar with Ms. Booker, and they knew that Ms. Booker was a drug addicted prostitute, who was homeless, and did not have any reason to be in plaintiff's apartment building. Nevertheless, after Ms. Booker's retaliatory allegation was made to the police officers against plaintiff, the individually named defendant police officers unlawfully arrested plaintiff inside of his apartment located at 2949 8th Avenue, Apt. 13E without legal justification or probable cause.

56. However, as alleged above, many of the defendant police officers regularly paid for sex with Ms. Booker and purchased drugs for her in order to keep her happy. The defendant police officers had incentive to keep Ms. Booker happy so that she would not report their unlawful, and criminal behavior.

57. Therefore, the officers knowingly and intentionally falsely arrested plaintiff without any probable cause or factual basis to believe he committed a crime.

58. Thereafter, plaintiff was transported to PSA 6 by the individually named defendant police officers.

59. The defendant police officers acknowledge that plaintiff's injuries required medical treatment and had an ambulance respond to PSA 6 to treat plaintiff's injuries.

60. Plaintiff was then transported by ambulance to Harlem Hospital so that he could receive further medical treatment for the injuries inflicted on him by Ms. Booker.

61. Plaintiff was then discharged from Harlem Hospital and transported back to PSA 6.

62. The defendant police officers maliciously initiated a prosecution against plaintiff without probable cause and falsely communicated to the New York District Attorney's Office that plaintiff had committed a crime despite knowing that plaintiff had not committed any crime and despite being in possession of evidence that exonerated plaintiff of the alleged crime.

63. Based upon the false, incomplete, and/or misleading information provided to the District Attorney's Office by the defendant police officers, a prosecution against plaintiff was initiated against the plaintiff, and signed a criminal court complaint under the penalty of perjury which contained false, misleading and incomplete information about the facts of the underlying case.

64. Thereafter, plaintiff was transported to Manhattan Central Booking.

65. On January 8, 2013, after approximately 24 hours in police custody, plaintiff was arraigned in Manhattan Criminal Court and charged with Assault in the Third Degree and as a result of the defendants false allegations against plaintiff and bail was set in the amount of \$1,000.

66. Plaintiff was unable to post bail and therefore was remanded to the custody of the NYC Department of Correction and housed at a facility at Riker's Island.

67. On or about January 12, 2013, after spending approximately 3 days at Riker's Island, plaintiff was able to post bail and was released from Riker's Island.

68. At arraignment, as is customary in these types of cases, the Judge issued an order of protection against Ms. Booker and ordered her to stay away from plaintiff.

69. Thereafter, on March 3, 2013, at approximately 12:00 a.m, plaintiff was lawfully present inside of his apartment located at 2949 8th Avenue, Apt. 13E, NY, NY.

70. Plaintiff's doorbell rang unexpectedly and plaintiff answered the door to see who was there.

71. When he opened the door, Ms. Booker and another woman, Teiyana Terry unlawfully entered plaintiff's apartment and began assaulting plaintiff and stole his cell phone.

72. As plaintiff was being assaulted by the two women, he was able to call out to his neighbors to call 911.

73. Thereafter, the defendant police officers arrived at plaintiff's apartment and observed that plaintiff had been assaulted by the two woman and sustained physical injuries.

74. The defendant police officers lawfully arrested Ms. Booker and Ms. Terry for assaulting plaintiff and for violating the order of protection.

75. At no point did plaintiff commit a crime, nor did the defendant police officers have any reason to believe plaintiff committed any crime.

76. Additionally, it should be clear that the defendant police officers knew that plaintiff was inside of his home at the time of the incident, and could not have violated any order of protection when the two woman forcibly entered his home and assaulted him.

77. Nevertheless, the defendant police officers unlawfully arrested plaintiff without legal justification or probable cause.

78. Thereafter, plaintiff was transported to St. Luke's Hospital to receive medical treatment for the injuries he sustained as a result of the assault by Ms. Booker and Ms. Terry.

79. Thereafter, plaintiff was transported against his will to PSA 6.

80. While at the precinct, the defendant police officers falsely communicated to the New York District Attorney's Office that plaintiff had committed a crime despite knowing that plaintiff had not committed any crime and despite being in possession of evidence that exonerated plaintiff of the alleged crime.

81. Based upon the false, incomplete, and/or misleading information provided to the District Attorney's Office by the defendant police officers, a prosecution against plaintiff was initiated against the plaintiff.

82. On or about March 4, 2013, plaintiff was transported to Manhattan Central Booking.

83. On or about March 4, 2013, after approximately 24 hours in custody, plaintiff was arraigned in Manhattan Central Booking and bail was set in the amount of \$2,000.

84. Plaintiff was unable to post bail and was transported to the Manhattan Detention Center.

85. Thereafter, appeared in Court on March 19, 2014 and the Judge ordered that plaintiff be released on his own recognizance.

86. On or about March 20, 2014, plaintiff was released from custody and returned home to his apartment located at 2949 8th Avenue, Apt. 13E, NY, NY.

87. Upon returning home to his apartment, plaintiff observed his beloved dog dead inside of his apartment.

88. Plaintiff's dog died from starvation because plaintiff was unable to feed his dog while he was incarcerated at the Manhattan Detention Center, and the police officers refused to help plaintiff get someone into the apartment to feed the dog.

89. Thereafter, on May 20, 2013, plaintiff appeared in Court on the charges related to the January 7, 2013 arrest and all charges were dismissed upon motion of the district attorney.

90. Further, on July 18, 2013, plaintiff appeared in Court on the charges related to the March 3, 2013 arrest and all charges against him were dismissed.

91. As a result of both arrests, plaintiff suffered severe psychological injuries and emotional trauma, including the death of plaintiff's beloved dog.

92. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable seizures, searches, false arrests, false imprisonments, and malicious prosecutions of plaintiff.

93. The unlawful seizures, searches, false arrests, false imprisonments, and malicious prosecutions of plaintiff by the individually named defendants caused plaintiff to sustain serious physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth, Fifth, and Fourteenth

Amendment Rights

94. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 93 with the same force and effect as if more fully set forth at length herein.

95. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be falsely arrested, falsely imprisoned, maliciously prosecuted, abused process, and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States related to both the January 7, 2013 and March 3, 2013 arrest and prosecution.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

96. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 95 with the same force and effect as if more fully set forth at length herein.

97. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York on both January 7, 2013 and March 3, 2013. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

98. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

99. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Unlawful Search

100. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 99 with the same force and effect as if more fully set forth at length herein.

101. The illegal search of plaintiff by defendants herein terminated plaintiff's freedom of movement through means intentionally applied

102. Defendants lacked probable cause to search plaintiff's apartment.

103. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

104. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

Failure to Intervene

105. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 94 with the same force and effect as if more fully set forth at length herein.

106. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers related to both the January 7, 2013 and March 3, 2013 arrests and prosecutions.

107. Defendants failed to intervene to prevent the unlawful conduct described herein.

108. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

109. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

110. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

Negligence

111. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 110 with the same force and effect as if more fully set forth at length herein.

112. Defendants owed a duty of care to plaintiff.

113. Defendants breached that duty of care by negligently causing the death of plaintiff's dog after the March 3, 2013 incident.

114. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

115. All of the foregoing occurred without any fault or provocation by plaintiff.

116. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

117. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

118. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 117 with the same force and effect as if more fully set forth at length herein.

119. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on January 7, 2013 and March 3, 2013 at the aforementioned locations.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

120. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 119 with the same force and effect as if more fully set forth at length herein.

121. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, John Toliaferro. Specifically, the defendant police officers caused plaintiff's dog to starve to death after the March 3, 2013 arrest. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

122. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

123. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

Intentional Infliction of Emotional Distress

124. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 123 with the same force and effect as if more fully set forth at length herein.

125. The above-described conduct of the individually named defendants was outrageous, atrocious so extreme in degree to go beyond all possible bounds of decency, and utterly intolerable in a civilized community in that the defendant police officers allowed plaintiff's dog to starve to death after the March 3, 3013 arrest.

126. The individually named defendants' conduct was intentional, wanton and reckless and was done with a total disregard of the risks to plaintiff's health and safety.

127. As a direct and proximate result of the acts alleged above, plaintiff suffered severe emotional distress, humiliation, mental anguish, and physical distress.

128. The acts of the individually named defendants alleged above were willful, wanton, flagrant, malicious, oppressive, and performed with a total disregard for plaintiff's health safety and welfare, and justify the award of punitive damages.

129. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

NINTH CAUSE OF ACTION

Malicious Prosecution

130. Plaintiff repeats and realleges paragraphs 1 through 130 as if fully set forth herein.

131. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

132. Defendants commenced and continued a criminal proceeding against plaintiff related to the January 7, 2013 and March 3, 2013 arrest and prosecutions.

133. There was actual malice and an absence of probable cause for the criminal proceedings against plaintiff and for each of the charges for which he was prosecuted.

134. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

135. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

136. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

137. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

TENTH CAUSE OF ACTION

Denial of Right to Fair Trial

138. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 137 with the same force and effect as if fully set forth herein.

139. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office related to both the January 7, 2013 and March 3, 2013 arrests and subsequent prosecutions.

140. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

141. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

142. In withholding/creating false evidence against plaintiff John Toliaferro, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

143. As a result of the foregoing, plaintiff John Toliaferro, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

144. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

145. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

ELEVENTH CAUSE OF ACTION

Malicious Abuse of Process

146. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 145 with the same force and effect as if fully set forth herein.

147. Defendants issued legal process to place plaintiff Bernard Miler under arrest.

148. Defendants arrested plaintiff Bernard Miller in order to obtain a collateral objective outside the legitimate ends of the legal process.

149. Defendants acted with intent to do harm to plaintiff Bernard Miller, without excuse or justification.

150. As a result of the foregoing, plaintiff Bernard Miller sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

151. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

152. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

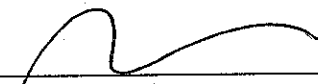
JURY DEMAND

153. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff John Toliaferro demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
October 16, 2014

By: 

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
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TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
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SERGEANT FELIZ, PSA 6
SERGEANT RON SAWERS, PSA 6
POLICE OFFICER CUMMINGS, PSA 6

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

DATED: New York, New York
October 16, 2014



STUART E. JACOBS